EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 20514/10
Mehmet GÜRKAN
against Turkey

The European Court of Human Rights (Second Section), sitting on 16 May 2017 as a Committee composed of:

Julia Laffranque, *President,*
Jon Fridrik Kjølbro,
Stéphanie Mourou-Vikström, *judges*,
and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 9 March 2010,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Mehmet Gürkan, is a Turkish national, who was born in 1977 and lives in Mardin.

The Turkish Government ("the Government") were represented by their Agent. The applicant complained under Articles 9, 10 and 11 of the Convention about his conviction under section 7(2) of the Prevention of Terrorism Act (Law no. 3713).

The application was communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By letter dated 13 March 2014, sent by registered post, the applicant was notified that the period allowed for submission of his observations had expired on 9 August 2012 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to

pursue the application. However, no response has been received and the Registry's letter was returned to the Court since the applicant had moved from the address of which he had notified the Court, without informing the Court of the change of address.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 15 June 2017.

Hasan Bakırcı
Deputy Registrar

Julia Laffranque
President